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DEPARTMENT OF LEGISLATIVE SERVICES
OFFICE OF POLICY ANALYSIS
MARYLAND GENERAL ASSEMBLY

August 11, 2026

Jared DeMarinis, Esq.
State Administrator of Elections
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151 West Street, Suite 200
Annapolis, Maryland 21401-0486

Dear Mr. DeMarinis:

In accordance with § 7-105(b) of the Election Law Article, enclosed are the summaries prepared by the Department of Legislative Services of the following questions that will appear on the ballot at the 2026 general election as a result of legislation passed by the General Assembly at the Special Session of 2026:

Question 1 – Constitutional Amendment
Chapter 155 (House Bill 604) of 2026
Arbitration Reform for State Employees Act of 2026

Question 2 – Constitutional Amendment
Chapter 878 (Senate Bill 933) of 2026
Judiciary Department – Commission on Judicial Disabilities – Temporary Appointment

Question 3 – Constitutional Amendment
Chapter 881 (House Bill 2100) of the Special Session of 2026
Election Districts – General Assembly and Representatives in Congress

As you are aware, during the Special Session, the General Assembly: (1) withdrew and recalled the constitutional amendment proposed by Chapter 156 (Senate Bill 28) of 2026 through the passage of Chapter 882 of the Acts of the Special Session of the General Assembly of 2026; and (2) proposed an additional constitutional amendment through the passage of Chapter 881 of the Acts of the Special Session of the General Assembly of 2026.

QUESTION 1: CONSTITUTIONAL AMENDMENT

Arbitration Reform for State Employees Act of 2026

Chapter 155 of 2026 (House Bill 604)

Summary

This constitutional amendment would amend the Maryland Constitution to require that the annual budget submitted by the Governor to the General Assembly include the proposed appropriations necessary to implement and fund all terms and conditions of employment in each collective bargaining memorandum of understanding involving the State, a State institution of higher education, or the Maryland Environmental Service, and the exclusive representatives of their respective employees. The requirement applies whether the memorandum of understanding was reached through mutual agreement or binding arbitration. Further, each annual budget must contain a statement showing changes in wages, hours, fringe benefits, health benefits, and other terms and conditions of employment for State employees included in each memorandum of understanding covering State employees for the next fiscal year.

Also, contingent on passage of the proposed constitutional amendment, and its ratification by the voters, the bill establishes binding arbitration in the event of an impasse in collective bargaining negotiations for State employees (except for employees of State institutions of higher education). If the constitutional amendment passes, the legislation requires the selection of a neutral arbitrator to oversee all aspects of collective bargaining when a bargaining impasse is declared and clarifies the matters subject to negotiation.

The legislation further clarifies that under collective bargaining (1) matters requiring a change in law are contingent on the enactment of legislation making the change; (2) matters requiring an appropriation are contingent on the General Assembly's approval of the appropriation; and (3) an arbitrator's decision related to wages is subject to limitations of the State budget.